

happen that the first vested estate of inheritance is in B., and that A. and B. collude together in cutting the timber, and then a court of equity equally interferes and makes A. and B. accountable as constructive trustees of the proceeds for the benefit of the other persons interested in the estate, including tenants for life (a). Where there is collusion between the tenant for life and the owner of the first estate of inheritance, or where the tenant for life is also owner of the first estate of inheritance, and the timber is improperly cut, the remedy of the next tenant for life in remainder, is said to be barred by the statute after six years from the death of the prior tenant for life (b).

Mines. — 36 & 37 Vict. c. 66, s. 25. — These principles which have been laid down as * to timber apply also *mutatis mutandis* to waste in opening mines (a).

subject of timber generally, see the work of the late Mr. Craig, Q. C.

(a) *Garth v. Cotton*, 3 Atk. 751.

(b) *Birch-Wolfe v. Birch*, 9 L. R. Eq. 683. Where the timber is *properly* cut, either by order of the Court or by a wise exercise of the discretion of the trustees, the proceeds are treated as part of the settlement, and are invested for the benefit of all persons interested, whether tenants for life or otherwise, and whether impeachable for waste or not, according to their respective estates. *Waldo v. Waldo*, 12 Sim. 107; *Wickham v. Wickham*, 19 Ves. 419; *Gent v. Harrison*, Johns. 517; *Mildmay v. Mildmay*, 4 B. C. C. 76; *Delapole v. Delapole*, 17 Ves. 150; *Tooker v. Annesley*, 5 Sim. 235; *Consett v. Bell*, 1 Y. & C. C. C. 569; *Honywood v. Honwood*, 18 L. R. Eq. 306. And if there be a tenant for life unimpeachable of waste, whose estate comes into possession, as he might have cut the timber, he is held to be entitled absolutely to the fund; *Waldo v. Waldo*, 12 Sim. 107; *Phillips v. Barlow*, 14 Sim. 262; *Gent v. Harrison*, Johns. 517; [*Lowndes v. Norton*, 6 Ch. D. 139. And an equitable tenant for life unimpeachable for waste is enti-

tled to the proceeds of ornamental timber cut by him where the timber so cut is such as the Court would itself direct to be cut for the preservation and improvement of the remaining ornamental timber; but it does not follow that the Court will not at the instance of the remainderman grant an injunction restraining the tenant for life from cutting any ornamental timber which it has become necessary to cut, and direct that the cutting be done under its supervision; *Baker v. Sebright*, 13 Ch. D. 179.] *Windfalls* belong to the owner of the first estate of inheritance, except such trees as the tenant for life would have been entitled to cut as thinnings, etc., and these belong to the tenant for life, *Bateman v. Hotchkin* (No. 2), 31 Beav. 486; [and see *Re Ainslie*, 28 Ch. D. 89; *Re Harrison*, 54 L. J. N. S. Ch. 26, where the proceeds of larch plantations which had been blown down were applied in renewing the plantations and the balance was invested and the income directed to be paid to the tenant for life; varied on appeal, 28 Ch. D. 220.]

(a) See *Bagot v. Bagot*, 32 Beav. 509.